

25STCV31376 25STCV31376

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-28

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Case Number: 25STCV31376 Hearing Date: August 28, 2026 Dept: 406

EDWIN SORIANO,

Plaintiff,

v.

UBER TECHNOLOGIES, INC.,

et al.,

Defendants.

Case No.: 25STCV31376

Hearing Date: August 28, 2026

[TENTATIVE]

order RE:

defendants' motion to compel arbitration

BACKGROUND

On October 28, 2025, Plaintiff Edwin

Soriano filed this action against Defendants Uber Technologies, Inc.; Raiser

LLC; Raiser-CA LLC; Kobe Gomez; and Kandi Dudley. The complaint stems from

personal injuries Plaintiff sustained in an auto collision while he was a

passenger in a rideshare vehicle.

On July 13, 2026, Defendants Uber, Raiser, and Raiser-CA filed the instant motion to compel arbitration. Plaintiff has not filed an opposition.

LEGAL STANDARD

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists...” (Code Civ. Proc, § 1281.2.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

“The moving party ‘can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.’” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.)

Here, Defendants present evidence that Plaintiff agreed to Uber’s Terms of Use (Terms) multiple times by checking a box in the user interface of the Uber app. (Pare Decl. ¶¶ 13-17, Ex. A.) The in-app interface notified the user that “By checking the box, I have reviewed and agreed to the Terms of Use and acknowledge the Privacy Notice” and provided a link to the Terms and Privacy Notice. (Ibid.) A user cannot proceed to use the Uber app without checking the box and clicking a “Confirm” button. (Ibid.)

The Terms contain an arbitration agreement covering any dispute or claim arising out of or relating to: (i) the Terms; (ii) Plaintiff’s use of the Services; and (iii) incidents or accidents resulting in personal injury in connection with the Services. (Pare Decl., Ex. G.) Plaintiff’s claims, which arise from personal injuries sustained while riding in an Uber, fall squarely within the scope of the arbitration agreement.

Thus, Defendants have proven that

Plaintiff agreed to arbitrate the claims being asserted in the complaint.

Plaintiff does not oppose this showing or provide any reason for not enforcing the agreement.

CONCLUSION

Defendants Uber Technologies,

Inc.'s, Raiser LLC's, and Raiser-CA LLC's motion to compel arbitration is

GRANTED. The case is stayed in its entirety.